

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX

-----X
MIGUEL RODRIGUEZ,

Plaintiff

- against -

THE CITY OF NEW YORK,
THE NEW YORK POLICE DEPARTMENT,
POLICE OFFICER STEVEN A. RAMUNNO
(SHIELD #11784)

Defendant.
-----X

Index No. _____
Purchased _____
Plaintiff designates The Bronx
County as the place of trial

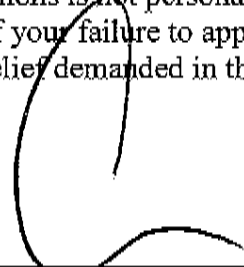
The basis of the venue is
where the tort arose

SUMMONS

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the RODRIGUEZ's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
June 19, 2017



MARTINDALE & ASSOCIATES, PLLC
By: Conway C. Martindale II
Attorneys for RODRIGUEZ
380 Lexington Avenue, 17th Floor
New York, New York 10168
(212)405-2233

Defendant's Address:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street

New York, New York 10007

NEW YORK POLICE DEPARTMENT

1 Police Plaza

New York, NY 10007

OFFICER STEVEN RAMUNNO (SHEILD # 11784)

44th PRECINCT

2 East 169th Street

Bronx, NY 10452

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY**

=====X
MIGUEL RODRIGUEZ

Plaintiff,

Index No.

Verified Complaint

- against -

**THE CITY OF NEW YORK,
THE NEW YORK POLICE DEPARTMENT,
POLICE OFFICER STEVEN A. RAMUNNO
(SHIELD #11784)**

Defendant.

=====X

Plaintiff MIGUEL RODRIGUEZ, by his attorneys MARTINDALE &
ASSOCIATES, PLLC, by CONWAY C. MARTINDALE II, principal, complaining of
the Defendant, respectfully shows to this Court and alleges the following upon
information and belief:

PARTIES

1. At all times relevant herein, Defendant THE CITY OF NEW YORK (hereinafter "CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
2. Upon information and belief, all New York Police Department (hereinafter "NYPD") officers, including Police Officer STEVEN A. RAMUNNO (hereinafter "RAMUNNO") mentioned herein were, at the time of the

occurrence, police officers of Defendant CITY, and at all times herein were acting in such capacity as the agents, servants, and employees of the defendant CITY.

3. At all times relevant herein, RODRIGUEZ MIGUEL RODRIGUEZ (hereinafter "RODRIGUEZ") is a citizen of the United States and a resident of Bronx County in the City and State of New York.

PROCEDURAL POSTURE

4. Within 90 days after the dismissal of the criminal proceeding, which occurred at on October 13, 2016, RODRIGUEZ served a Notice of Claim in writing sworn to on his behalf upon the Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
5. At least thirty days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety days after the happening of the event upon which the claims are based.
6. A 50-H hearing has been held.
7. The RODRIGUEZ has duly complied with all conditions precedent to the commencement of this action.

FIRST CAUSE OF ACTION: FALSE ARREST

8. Paragraphs 1-7 are incorporated by reference as fully set forth herein.
9. On the evening of October 2, 20013, RODRIGUEZ was a passenger in the van of his nephew as they pulled up to an apartment building near Townsend and Jerome Avenues in the county of the Bronx.
10. Once parked in front of the building, RODRIGUEZ's nephew informed him that he had to go upstairs for a brief moment to speak to his girlfriend and for RODRIGUEZ to wait in the van, which was double parked.
11. After waiting for approximately 15 minutes, RODRIGUEZ got out of the vehicle and spoke to some familiar individuals who were nearby.
12. After speaking to the individuals for only a couple of minutes, RODRIGUEZ was informed that the police were coming up the street. In order to avoid his nephew getting a ticket, RODRIGUEZ got into the van and sat in the driver's seat, and placed the keys on the dashboard.
13. As RODRIGUEZ sat in the driver's seat, NYPD officers, including RAMUNNO pulled up and asked RODRIGUEZ if the van was his. RODRIGUEZ responded that the vehicle was not his, but his nephew's, who was coming back to the vehicle shortly.
14. RAMUNNO and the other NYPD officers conferred for a brief moment and then ordered RODRIGUEZ out of the van, informing him that he was under arrest for driving under the influence of alcohol.

15. RODRIGUEZ emphatically stated that he was not driving and the engine was not running, pointing to the keys on the dashboard. An unidentified NYPD officer told RODRIGUEZ, "shut the fuck up, you're under arrest."
16. There, NYPD officers, including RAMUNNO, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully handcuffed and arrested the RODRIGUEZ. The officers arrested RODRIGUEZ intentionally, and RODRIGUEZ at all times was aware he was being arrested and did not consent to being arrested.
17. After arresting and handcuffing RODRIGUEZ, officers escorted him into the back of a police van with extremely tight handcuffs and drove around for an hour before bringing him to the 44th Precinct. RODRIGUEZ informed the officers that he was in need of his heart medication due to a chronic heart ailment. These pleas were ignored.
18. RODRIGUEZ was in the 44th Precinct before being taken to an unknown precinct in Queens County where a breathalyzer examination was administered.
19. RODRIGUEZ was then brought to central booking in Bronx County, but was quickly brought to Montefiore Hospital in Bronx County for heart palpitations.
20. Approximately thirty six hours after he was arrested, RODRIGUEZ was released from custody on his own recognizance.
21. RODRIGUEZ went back and forth to court for a little over three years, professing his innocence until his case was ultimately dismissed on October 13, 2016.
22. Shortly before the aforementioned dismissal, RODRIGUEZ's Legal Aid Society attorney, Ms. Madeline Moore, was provided the NYPD arrest report by the

Bronx County District Attorney's office, reflecting that the engine of the vehicle RODRIGUEZ was located in was off at the time of the arresting NYPD officers approached.

23. As a result of being arrested by RAMUNNO and other NYPD officers, RODRIGUEZ suffered psychological injuries, resulting in the need of anti-anxiety pills..

SECOND CAUSE OF ACTION: FALSE IMPRISONMENT

24. Paragraphs 1-23 are incorporated by reference as though fully set forth herein.
25. The officers who arrested the RODRIGUEZ, as described in paragraphs 9-23, intended to confine him. RODRIGUEZ was conscious of his confinement and did not consent to it. Moreover, the confinement was not privileged or authorized by any warrant, order, or other legal right.

THIRD CAUSE OF ACTION: ABUSE OF PROCESS

26. Paragraphs 1-25 are incorporated by reference as though fully set forth herein.
27. In arresting RODRIGUEZ as described in paragraphs 9-23, the arresting NYPD officers were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.
28. In arresting RODRIGUEZ as described in paragraphs 9-23, the arresting NYPD officers sought either a detriment to RODRIGUEZ or a collateral advantage to themselves that is outside of the legitimate ends of making an arrest.

29. As a result of defendants' abuse of process, RODRIGUEZ sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

FOURTH CAUSE OF ACTION: MALICIOUS PROSECUTION

30. Paragraphs 1-29 are incorporated by reference as though fully set forth herein.
31. In arresting RODRIGUEZ as described in paragraphs 9-23, the arresting NYPD officers acted with malice and without probable cause.
32. As a result of being maliciously prosecuted by RAMUNNO and the other NYPD officers, RODRIGUEZ sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

FIFTH CAUSE OF ACTION: 42 U.S.C. 1983 and 1988

33. Paragraphs 1-32 are incorporated by reference as though fully set forth herein.
34. Upon information and belief, the officers, including RAMUNNO, who illegally arrested RODRIGUEZ were at all times relevant duly appointed and acting officers of the City of New York Police Department.
35. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
36. RODRIGUEZ is and at all times relevant herein a citizen of the United States and resident of Bronx County in the State of New York. He brings this cause of action

pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

37. The defendant CITY OF NEW YORK is a municipality duly incorporated under the laws of the State of New York.
38. On or about October 2, 2013, as described in paragraphs 9-23, armed officers of the NYPD, while effectuating the seizure of the RODRIGUEZ, searched, seized, RODRIGUEZ, and grabbed RODRIGUEZ's person, without a court authorized arrest or search warrant. RODRIGUEZ was falsely arrested and maliciously prosecuted without the police officers possessing probable cause to do so.
39. The above actions of the arresting officers caused RODRIGUEZ to be deprived of the following rights under the United States Constitution:
- (a) Freedom from illegal search and seizure
 - (b) Freedom from false arrest
 - (c) Freedom from malicious prosecution
40. The arresting officers subjected RODRIGUEZ to such deprivations, either in a malicious or reckless disregard of RODRIGUEZ's rights or with deliberate indifference to those rights under the Fourth and Fourteenth Amendments of the United States Constitution.
41. The direct and proximate result of the RAMUNNO's acts and the other NYPD officers' acts are that RODRIGUEZ has suffered severe and permanent psychological injuries. RODRIGUEZ was forced to endure pain and suffering to his detriment.

SIXTH CAUSE OF ACTION: NEGLIGENCE

42. Paragraphs 1-41 are incorporated by reference as though fully set forth herein.
43. At all times hereinafter mentioned, the aforesaid false arrest, false imprisonment, abuse of process, and malicious prosecution were caused solely by the negligence of Defendant CITY, its agents, servants and/or employees.
44. As a result of the negligence by Defendant CITY, RODRIGUEZ sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

SEVENTH CAUSE OF ACTION: NEGLIGENT SUPERVISION

45. Paragraphs 1-44 are incorporated by reference as though fully set forth herein.
46. Defendant CITY has grossly failed to train and properly supervise its police officers regarding the law of arrest, search and seizure, particularly when its police officers lack a valid arrest or search warrant and where an individual, such as the RODRIGUEZ in the instant case, has not committed a crime and has not resisted arrest.
47. Defendant CITY was negligent by failing to implement a policy within its police department instructing police officers not to arrest individuals such as the RODRIGUEZ unless there is a court authorized warrant or probable cause.
48. Defendant CITY is negligent due to its failure to implement a policy with its police department or actively enforce the law, if any of the following is lacking:
- (a) Probable cause must be present before individuals such as the RODRIGUEZ herein can be arrested.

49. The foregoing acts, omissions and systematic failures are customs and policies of Defendant CITY which caused its police officers to falsely arrest, maliciously prosecute, illegally search and seize RODRIGUEZ.

EIGHTH CAUSE OF ACTION: NEGLIGENT HIRING

50. Paragraphs 1-49 are incorporated by reference as though fully set forth herein.

51. Defendant CITY was negligent because prior to and at the time of the acts complained of herein, due to the prior history of the police officers mentioned herein, the CITY knew or should have known of the bad disposition of said police officers or had knowledge of facts that would have put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the CITY and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals or conduct illegal searches.

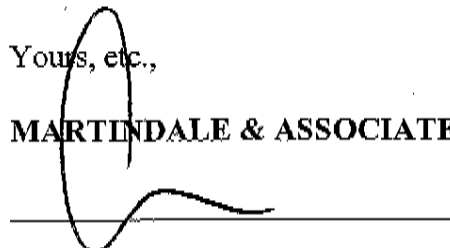
WHEREFORE, PLAINTIFF MIGUEL RODRIGUEZ demands judgment against the Defendant in the sum of \$1,000,000, together with the costs and disbursements of this action as well as any other additional relief this Court deems just and proper.

Dated: New York, New York

June 19, 2017

Yours, etc.,

MARTINDALE & ASSOCIATES, PLLC

A handwritten signature in black ink, appearing to be "Conway C. Martindale II", is written over a horizontal line.

By: Conway C. Martindale II
Attorneys for Plaintiff
380 Lexington Avenue, 17th Floor
New York, NY 10168
(212)405-2233

VERIFICATION

The undersigned, the Plaintiff in this action, affirms under the penalties of perjury:

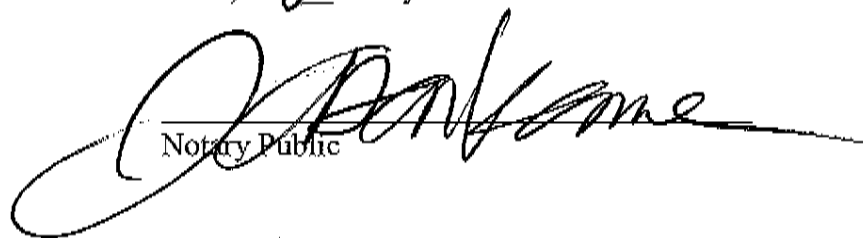
That deponent is the Plaintiff in the within action; that deponent has read the foregoing **VERIFIED SUMMONS AND COMPLAINT** and knows the contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes those to be true.

The grounds for deponent's belief as to all matters not stated upon his knowledge are investigations which his attorney has made or has caused to be made concerning the subject matter of this action, and statements of parties or witnesses herein.

Dated: New York, New York
June 22, 2017


MIGUEL RODRIGUEZ

Subscribed and sworn to before me, this 22 day of June 2017


Notary Public

JASON VANCE
NOTARY PUBLIC, State of New York
No. 04VA6161023
Qualified in Bronx County
Commission Expires Feb. 6, 2019

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SUMMONS & COMPLAINT

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**TO: CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
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New York, New York 10007

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New York, NY 10007

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Bronx, NY 10452